



United States
Attorney's Office
Southern District of California



Bonita Man Pleads Guilty in \$5.8 Million Medicare Fraud Scheme

Wednesday, July 2, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of California

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SAN DIEGO – Jacobo Melcer, a Bonita resident and businessowner, pleaded guilty in federal court today, admitting that he conspired with others to defraud Medicare of millions of dollars and to pay unlawful kickbacks for patient referrals.

According to his plea agreement, Melcer submitted more than \$5.88 million in false and fraudulent claims to Medicare through his ownership and operation of two durable medical equipment (DME) companies, which sold orthotics – including back, wrist, and knee braces – to Medicare beneficiaries.

Melcer admitted that in operating the DME companies, he paid unlawful kickback payments to multiple companies for the referral of Medicare beneficiaries and prescriptions for DME, knowing that the prescriptions were signed by physicians who had no legitimate doctor-patient relationship with the beneficiary and had not conducted a legitimate medical evaluation of the beneficiary.

In total, Melcer admitted that he paid more than \$227,000 in kickbacks, and fraudulently billed Medicare \$5,885,382 and was paid \$3,479,303. As part of his guilty plea, Melcer agreed to forfeit and pay restitution in the amount of \$3,479,303.

Melcer further admitted that he created and sold two DME companies to a co-conspirator for the sole purpose of putting the ownership under a nominee owner to conceal the true ownership from Medicare due to Medicare suspending the co-conspirator as a Medicare provider and the co-conspirator's inability to continue to submit claims to Medicare.

Melcer's sentencing is scheduled for October 10, 2025. The case is being prosecuted by Assistant U.S. Attorney Blanca Quintero of the Southern District of California.

DEFENDANT

Case Number 25cr2568-DMS

SUMMARY OF CHARGES

Conspiracy to Commit Health Care Fraud and Pay Illegal Remunerations – Title 18, U.S.C., Section 371

Maximum penalty: Five years in prison and \$500,000 fine

INVESTIGATING AGENCIES

Federal Bureau of Investigation

U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG)

*The charges and allegations contained in an indictment or complaint are merely accusations, and the defendants are considered innocent unless and until proven guilty.

Updated July 2, 2025

Topic

HEALTHCARE FRAUD

Component

[USAO - California, Southern](#)

Press Release Number: CAS25-0702-Melcer

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